

IF YOUR CONDITION FLARES, READ THIS

Alberta Regulation 96/2026, section 15(4) — and a letter you can send to your MLA today.

What the regulation says

These are the exact words of the law. Not a summary.

AR 96/2026, s.15(4): “A director may refuse, suspend, vary or discontinue a benefit provided under **section 3.02 of the Act** for which an applicant or client is eligible if, in the director’s opinion, the applicant or client has (a) refused to seek or accept or has **reduced or terminated** the applicant’s or client’s **reasonable employment**, or (b) refused or neglected to participate in or make use of an **employment support**.”

AR 96/2026, s.16(a): “... an applicant or client **must notify a director** of the following: (a) the **termination or commencement of employment** by the applicant or client...”

Section 3.02 of the Act is ADAP. This power does not apply to people who remained on AISH.

What it means in a life

You have MS, or lupus, or ME/CFS, or Crohn’s, or bipolar disorder, or long COVID, or epilepsy, or migraine, or fibromyalgia, or EDS. You have a good stretch and you take some hours. Then you flare, and your body stops, and you cut your hours or stop altogether — because you have no choice.

You have now “reduced” your employment.

Section 16(a) requires you to report it. Section 15(4)(a) makes it a ground to cut your benefit.

You must report the very thing that can be used against you.

The regulation draws no distinction between a person who *will not* work and a person who *cannot*. It says “reduced or terminated.” That is all it says. **There is no exemption for illness, incapacity, or symptom exacerbation anywhere in the regulation.**

“Reasonable employment” is **not defined** in the Act or the regulation. “Employment support” is **not defined** either — s.14 says only that “the Minister may determine the types of employment supports that may be provided.” And decisions to refuse, suspend, vary or discontinue a benefit are **exempt from appeal**.

Two things we will be precise about

The regulation says “**may**” — it is a discretionary power, not an automatic cut. And **we are not aware of a case where it has been used**. The finding is that **the power exists**, that no protection is written against it, and that nobody can tell you what “reasonable” means.

And almost nobody moved to ADAP was assessed. The transition happened by operation of law on July 2, 2026. No appointment. No panel. No one looked at a single file. Tens of thousands of people with episodic conditions were placed into a program that penalises precisely what their condition does — and nobody checked.

Fill in the letter over the page. Put your name on it. Send it to your MLA and to the Minister.

*Find your MLA: www.assembly.ab.ca/members/members-of-the-legislative-assembly
Minister Neudorf, Assisted Living and Social Services: alss.minister@gov.ab.ca*

LETTER TO YOUR MLA

Fill in the shaded boxes. Everything else is written for you.

Your MLA's name

Date

Subject: AR 96/2026 s.15(4) — my disability flares, and this regulation penalises that

Dear [your MLA],

I am your constituent. I was moved from AISH to the Alberta Disability Assistance Program on July 2, 2026.

Nobody assessed me. No one looked at my file. It happened by operation of law.

I am writing about **section 15(4) of Alberta Regulation 96/2026**, which provides:

*“A director may refuse, suspend, vary or discontinue a benefit provided under section 3.02 of the Act... if, in the director’s opinion, the applicant or client has (a) refused to seek or accept or has **reduced or terminated** the applicant’s or client’s reasonable employment, or (b) refused or neglected to participate in or make use of an employment support.”*

Section 3.02 is ADAP. This power does not apply to people who stayed on AISH. And **section 16(a)** requires me to notify a director when my employment ends.

My situation.

I live with this condition, and it is episodic:

This is what a flare does to me:

Maximum 420 characters. Two or three sentences in your own words is enough — and it is the most powerful part of this letter.

If I take work during a good stretch and then have to stop during a flare, I have **“reduced or terminated” my employment**. I am legally required to report that. And that same fact is a ground to cut my benefit.

The regulation does not distinguish between someone who will not work and someone who cannot. There is no exemption for illness anywhere in it. “Reasonable employment” is not defined. Neither is “employment support.” And I cannot appeal a decision to reduce or discontinue my benefit.

What I am asking you to do:

1. Raise section 15(4) with the Minister of Assisted Living and Social Services.
2. Ask what protection exists **in law** — not policy — for a person whose employment is reduced by illness rather than by choice.
3. Ask why this power applies to ADAP clients and not to AISH clients, when tens of thousands of us were moved between the two **without ever being assessed**.

I am not asking for special treatment. **I am asking not to be punished for having the condition that qualified me in the first place.**

Please reply in writing.

Sincerely,

Your name

Your city or town

Your email

The Alberta Disability System Breakdown — Advocate

St. Albert, Alberta | July 2026

albertadisabilitybreakdown@outlook.com

General information, not legal advice. Free to share, print, and post. Regulation text quoted verbatim from AR 96/2026, in force July 2, 2026.